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LAW OFFICES
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Attorneys for Plaintiff SARA SIERRA

**UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA**

SARA SIERRA, Individually,

Plaintiff,

vs.

UNITED STATES OF AMERICA;
GARRETT MARTIN SHAW; EAN
HOLDINGS, LLC; ENTERPRISE
HOLDINGS, INC.; ENTERPRISE
HOLDINGS, LLC; ESTATE OF
RACHEL CONNIE DE LARA; and
DOES 1 through 10, Inclusive,

Defendants.

Case No.:

**COMPLAINT FOR WRONGFUL
DEATH;
DEMAND FOR JURY TRIAL**

Plaintiff, SARA SIERRA ("Plaintiff"), alleges as follows:

JURISDICTION

1. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. § 1346 because this is an action for personal injury or death caused by the negligent or wrongful act or omission of an employee of the federal government, Defendant GARRETT MARTIN SHAW ("SHAW"), while acting within the scope

1 of his office or employment by the United States Department of Justice, Federal
2 Bureau of Prisons, under circumstances where the UNITED STATES OF
3 AMERICA, if a private person, would be liable to the claimant in accordance with
4 the law of the place where the act or omission occurred.

5 2. This Court has supplemental jurisdiction pursuant to 28 U.S.C. § 1367
6 to adjudicate Plaintiff's claims arising under the laws of the State of California,
7 including those involving the joinder or intervention of additional parties, because
8 such claims involve a common nucleus of operative facts so related to claims in the
9 action within such original jurisdiction that they form part of the same case or
10 controversy under Article III of the United States Constitution.

11 3. This Court has diversity jurisdiction over Plaintiff's claims herein
12 pursuant to 28 U.S.C. § 1332. The amount in controversy exceeds \$75,000.

13 4. Plaintiff's timely Federal Tort Claims Act ("FTCA") claim for damages
14 was denied by the United States Department of Justice, Federal Bureau of Prisons
15 ("Federal Bureau of Prisons"), on November 3, 2021.

16 VENUE

17 5. Venue is proper under 28 U.S.C. §1402 because at all times relevant,
18 Plaintiff resided in this district and the wrongful acts and/or omissions complained
19 of occurred in this judicial district.

20 6. Venue is proper under 28 U.S.C. § 1391(b) because Defendants, or
21 some of them, reside in this judicial district and because a substantial part of the acts
22 or omissions that give rise to Plaintiff's claim occurred in this district, on an
23 interstate highway in the City of El Monte, County of Los Angeles, California.
24

25 PARTIES

26 7. Plaintiff, SARA SIERRA, is a resident of the County of Los Angeles,
27 State of California. She is the mother of decedent Anthony Sierra ("Decedent").
28

1 Decedent never married. He died age 25 without issue. His father is deceased.
 2 Plaintiff is thus Decedent's lawful heir pursuant to California *Probate Code*
 3 6402(b), and brings this action in accordance with California *Code of Civil*
 4 *Procedure* § 377.60, which provides: "A cause of action for the death of a person
 5 caused by the wrongful act or neglect of another may be asserted by" the decedent's
 6 heirs.

7 8. Plaintiff is informed and believes and thereupon alleges that at all times
 8 herein mentioned, SHAW's employer, Federal Bureau of Prisons, is a Defendant
 9 UNITED STATES OF AMERICA federal law enforcement agency under the
 10 Department of Justice. UNITED STATES OF AMERICA is a proper defendant
 11 pursuant to 28 U.S.C. § 2679(b)(1) for claims for money damages arising from or
 12 out of a negligent or wrongful act and/or omission of any federal employee, such as
 13 SHAW committed within the course and scope of his employment, as alleged
 14 herein.

15 9. Plaintiff is informed and believes and thereupon alleges that at all times
 16 herein mentioned, Defendant SHAW was and is an individual, resident in the
 17 County of San Bernardino, State of California, employed by Federal Bureau of
 18 Prisons as a Correctional Officer. SHAW is named individually in accordance with
 19 28 U.S.C. § 2679 because Plaintiff's FTCA claim was denied on the basis that
 20 Plaintiff's injuries and damages were not "as a result of staff negligence in the
 21 conduct of their official duties."

22 10. Plaintiff is informed and believes and thereupon alleges that at all times
 23 herein mentioned, Defendant EAN HOLDINGS, LLC is a Delaware Limited
 24 Liability Company authorized to do and doing business in California; and
 25 Defendants ENTERPRISE HOLDINGS, INC. and ENTERPRISE HOLDINGS,
 26 LLC, are business entities, form unknown (hereinafter collectively referred to as
 27 "the ENTERPRISE DEFENDANTS"). The ENTERPRISE DEFENDANTS leased,
 28 rented, or otherwise participated in concert or venture with SHAW's employer,

1 Federal Bureau of Prisons, in SHAW's employer's vanpool arrangement, including
 2 owning, repairing, maintaining, and providing the van entrusted to and negligently
 3 and recklessly operated by SHAW in the course and scope of his employment,
 4 causing Decedent's death.

5 11. Plaintiff is informed and believes and thereupon alleges that at all times
 6 herein mentioned, Defendant ESTATE OF RACHEL CONNIE DE LARA is
 7 successor to Rachel Connie De Lara, deceased, who resided in the City of Covina,
 8 County of Los Angeles, California, and negligently operated the vehicle struck by
 9 Federal Bureau of Prisons employee SHAW.

10 12. The true names and capacities, whether individual, plural, corporate,
 11 partnership, associate or otherwise of Defendants, DOES 1 through 10, inclusive,
 12 are unknown to Plaintiff who therefore sues said defendants by such fictitious
 13 names. The full extent of the facts linking such fictitiously sued Defendants is
 14 unknown to Plaintiff. Plaintiff will seek leave to amend this complaint to allege their
 15 true names and capacities when ascertained along with appropriate charging
 16 allegations. Plaintiff is informed and believes, and thereon alleges, that each of the
 17 Defendants designated herein as a DOE was, and is, negligent, or in some other
 18 actionable manner responsible in some manner for the events and happenings herein
 19 referred to and thereby negligently, or in some other actionable manner, legally and
 20 proximately did cause injury and damage to the Plaintiff as herein alleged.

21 13. Plaintiff is informed and believes and thereupon alleges that at all times
 22 mentioned herein, Defendants, and each of them, inclusive, were agents, servants,
 23 employees, successors-in-interest, partners, aiders and abettors, co-participants,
 24 and/or joint venturers of their co-defendants, and each of them, and were, as such,
 25 acting within the course, scope, and authority of said agency, servitude,
 26 employment, enterprise, and/or joint venture, and that each and every Defendant as
 27 aforesaid, when acting as a principal, was negligent in the selection, hiring, and
 28 retention of each and every other Defendant as an agent, servant, employee,

1 successor-in-interest, aider and abettor, co-participant, and/or joint venturer.

2 3 FACTUAL ALLEGATIONS

4 14. On November 17, 2019, during hours of darkness, Federal Bureau of
5 Prisons employee SHAW, operating a 2019 Ford Transit passenger van (“van”)
6 rented, leased, or otherwise provided by the ENTERPRISE DEFENDANTS, to
7 SHAW’s employer, Defendant UNITED STATES OF AMERICA Federal Bureau
8 of Prisons, negligently and recklessly caused a collision that resulted in the death of
9 Anthony Sierra. SHAW, with the van’s cruise control set at 80 miles per hour in the
10 High Occupancy Vehicle Lane of the westbound Interstate 10 Freeway in the City
11 of El Monte, County of Los Angeles, collided with a disabled vehicle operated by
12 Rachel Connie De Lara. The van, disabled, came to a stop, blocking lanes.
13 Decedent, Anthony Sierra, a motorcyclist, was killed when he struck the disabled
14 van blocking lanes (the “INCIDENT”).

15 15. At the time and place of the INCIDENT, SHAW was in the course and
16 scope of his employment by Federal Bureau of Prisons, participating in a Federal
17 Bureau of Prisons’ employee vanpool arrangement and venture involving
18 Defendants including the ENTERPRISE DEFENDANTS.

19 16. Federal Bureau of Prisons expressly or impliedly required SHAW, who
20 was traveling with a co-employee, to provide transportation to other Federal Bureau
21 of Prisons employees. SHAW, with co-employee George Heras as passenger, was
22 vanpooling to work at the Metropolitan Detention Center in Los Angeles at the time
23 of the INCIDENT. SHAW was operating the van at the direction of and with his
24 employer Federal Bureau of Prisons’ and the ENTERPRISE DEFENDANTS’
25 permission, which either benefited his employer or constituted a customary incident
26 of SHAW’s employment. SHAW’s conduct in negligently operating the van at an
27 unsafe speed and otherwise was within the scope of his employment because
28 SHAW’s operation of the van was either required or incident to his employee duties,

1 or SHAW's negligence and misconduct operating the van at an excessive speed
 2 without regard for conditions could be reasonably foreseen by his employer, Federal
 3 Bureau of Prisons, which, among other things, provided the van, and controlled and
 4 directed, and had the right to control and direct, SHAW's use and operation of the
 5 van. The Federal Bureau of Prisons' vanpool arrangement, in concert with the
 6 ENTERPRISE DEFENDANTS, benefited SHAW's employer, a UNITED STATES
 7 OF AMERICA federal agency, by, among other things, furthering federal policy
 8 promoting ridesharing.¹

10 FIRST CAUSE OF ACTION

11 **(Wrongful Death Sounding in Negligence Against All Defendants)**

12 17. Plaintiff re-alleges and incorporates herein by reference each and every
 13 allegation and statement contained in the prior paragraphs of this Complaint.

14 18. Plaintiff is informed and believes, and thereon alleges, that at all times
 15 mentioned herein, Defendants UNITED STATES OF AMERICA, by and through
 16 its agency, Federal Bureau of Prisons, and its employee, SHAW, the ENTERPRISE
 17 DEFENDANTS, ESTATE OF RACHEL CONNIE DE LARA, and DOES 1
 18 through 10, inclusive, owned, leased, rented, operated, repaired, maintained,
 19 permitted, entrusted, provided and/or controlled vehicles involved in the
 20 INCIDENT, and owed a duty of care to all reasonably foreseeable people, including
 21 Decedent, Anthony Sierra, to own, operate, keep safe, repair, maintain, test, permit,
 22 license, let, rent, provide, entrust, and control their vehicles in a reasonable manner
 23 and in compliance with the duty of care and applicable law.

24 19. Defendants breached their duties of reasonable and due care, as well as
 25 one or more duties established by California's *Vehicle Code*, including, but not
 26 limited to, Rachel Connie De Lara's violation of California *Vehicle Code* § 22107,
 27 unsafe turning movement, and SHAW's violation, while in the course and scope of

28 ¹ https://www.planning.dot.gov/documents/Ridesharing_report.pdf

his Federal Bureau of Prisons employment, operating a van provided by and entrusted to him by his employer Defendant UNITED STATES OF AMERICA, and the ENTERPRISE DEFENDANTS, as part of their vanpool enterprise or venture, of California *Vehicle Code* § 22350, operating the van at a speed greater than was reasonable or prudent given the conditions, by negligently and recklessly operating, entrusting, and permitting operation of their vehicles at the time and place of the INCIDENT. Said statutory violations also constitute negligence *per se*. Decedent was a member of a group that said statutes, ordinances, and regulations were designed to protect. Said failures to exercise reasonable and due care, and statutory violations, were a substantial factor in causing Plaintiff's injuries and damages complained of herein, which resulted from harm that said statutes, ordinances, and regulations were designed to prevent.

20. As a legal, direct and proximate result of the reckless and negligent conduct of Defendants, and each of them, as aforesaid, Plaintiff has sustained general damages resulting from the loss of love, companionship, comfort, care, assistance, protection, affection, society, service, moral support, training, and guidance of Decedent, and special damages, including loss of financial support, gifts, benefits, and funeral and burial expenses, according to proof.

21. Defendants' negligence and other wrongful conduct as aforesaid was a substantial factor in causing Decedent's death, and the injuries and damages complained of herein.

PRAYER FOR DAMAGES

WHEREFORE, plaintiff SARA SIERRA prays for judgment as follows:

1. For general damages resulting from loss of Decedent's love, companionship, comfort, care, assistance, protection, affection, society, service, moral support, training, and guidance;

2. For special damages, including loss of financial support, gifts, benefits,
and funeral and burial expenses;
3. For pre-judgment interest;
4. For costs of suit, to the extent allowed by law; and
5. For such other and further relief as the Court may deem just and proper.

Dated: November 15, 2021

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By: MICHAEL P. O'CONNOR, Esq.
Counsel for Plaintiff SARA SIERRA

DEMAND FOR TRIAL BY JURY

Plaintiff hereby demands a trial by jury as to all causes of action.

Dated: November 15, 2021

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By: MICHAEL P. O'CONNOR, Esq.
Counsel for Plaintiff SARA SIERRA

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